



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1429: ~~board of directors; commerce authority.~~

S/E: ballot measures; circulators; disclosure

KOLODIN FLOOR AMENDMENT

Requires a circulator of an initiative or referendum petition to state whether the circulator is paid, a volunteer or an out-of-state resident by checking *all applicable lines regarding the status of the circulator*, rather than the appropriate line, on an initiative or referendum petition sheet prior to circulating the petition for signatures.

KOLODIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1429
(Reference to FEDERALISM, MILITARY AFFAIRS & ELECTIONS S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Section 19-101, Arizona Revised Statutes, is amended to
4 read:

5 19-101. Referendum petition; circulators; violation;
6 classification

7 A. The following shall be the form for referring to the people by
8 referendum petition a measure or item, section or part of a measure
9 enacted by the legislature, or by the legislative body of an incorporated
10 city, town or county:

11 Referendum Description

12 (Insert a description of not more than two hundred words of the
13 principal provisions of the measure sought to be referred.)

14 Notice: This is only a description of the measure sought to be
15 referred prepared by the sponsor of the measure. It may not include every
16 provision contained in the measure. Before signing, make sure the title
17 and text of the measure are attached. You have the right to read or
18 examine the title and text before signing.

19 Petition for Referendum

20 To the secretary of state (or to the corresponding
21 officer for or on local, county, city or town measures):

22 We, the undersigned citizens and qualified electors of the
23 state of Arizona, respectfully order that the senate (or
24 house) bill No. _____ (or other local, county, city or town
25 measure) entitled (title of act or ordinance, and if the
26 petition is against less than the whole act or ordinance then
27 set forth here the item, section, or part, of any measure on
28 which the referendum is used), passed by the _____
29 session of the legislature of the state of Arizona, at the
30 general (or special, as the case may be) session of said
31 legislature, (or by a county, city or town legislative body)

shall be referred to a vote of the qualified electors of the state, (county, city or town) for their approval or rejection at the next regular general election (or county, city or town election) and each for himself says:

I have personally signed this petition with my first and last names. I have not signed any other petition for the same measure. I am a qualified elector of the state of Arizona, county of (or city or town and county of, as the case may be)

_____.

~~Warning~~

It is a class 1 misdemeanor for any person to knowingly sign an initiative or referendum petition with a name other than his own, except in a circumstance where he signs for a person, in the presence of and at the specific request of such person, who is incapable of signing his own name because of physical infirmity, or to knowingly sign his name more than once for the same measure, or to knowingly sign such petition when he is not a qualified elector.

Signature	Name	Actual	Arizona	City or	Date
	(first and	address	post office	town	signed
	last name	(street &	address	(if any)	
	printed)	no. and if	& zip		
		no street	code		
		address,			
		describe			
		residence			
		location)			

(Fifteen lines for signatures which shall be numbered)

The validity of signatures on this sheet must be sworn to by the circulator before a notary public on the form appearing on the back of the sheet.

Number _____

B. Each petition sheet shall have printed on the top of each sheet the following:

~~It is unlawful to sign this petition before it has a serial number.~~

C. Each petition sheet shall have printed in capital letters in not less than twelve point bold-faced type in the upper right-hand corner of the face of the petition sheet and below the statement prescribed in subsection B of this section the following:

~~_____ paid circulator_____ volunteer_____~~
~~OUT-OF-STATE RESIDENT.~~

D. A circulator of a referendum petition shall state whether the circulator is a paid circulator, ~~or~~ volunteer OR OUT-OF-STATE RESIDENT by checking ~~[the appropriate line]~~ [ALL APPLICABLE LINES REGARDING THE STATUS OF THE CIRCULATOR] on the petition form before circulating the petition for signatures.

1 E. Signatures obtained on referendum petitions in violation of
2 subsection D of this section are void and shall not be counted in
3 determining the legal sufficiency of the petition. The presence of
4 signatures that are invalidated under this subsection on a petition does
5 not invalidate other signatures on the petition that were obtained as
6 prescribed by this section.

7 Sec. 2. Section 19-102, Arizona Revised Statutes, is amended to
8 read:

9 19-102. Initiative petition; circulators

10 A. The form of petition for a law or amendment to the constitution
11 of this state or county legislative measure, or city or town ordinance, or
12 amendment to a city or town charter proposed by the initiative to be
13 submitted directly to the electors, shall be substantially in the form
14 prescribed in section 19-101, except that the title and body of such
15 petition shall read:

16 Initiative description

17 (Insert a description of not more than two hundred words
18 of the principal provisions of the proposed measure or
19 constitutional amendment.)

20 Notice: This is only a description of the proposed measure (or
21 constitutional amendment) prepared by the sponsor of the measure. It may
22 not include every provision contained in the measure. Before signing,
23 make sure the title and text of the measure are attached. You have the
24 right to read or examine the title and text before signing.

25 Initiative Measure to be Submitted Directly to Electors

26 We, the undersigned, citizens and qualified electors of
27 the state of Arizona, respectfully demand that the following
28 proposed law (or amendment to the constitution, or other
29 initiative measure), shall be submitted to the qualified
30 electors of the state of Arizona (county, city or town of
31 _____) for their approval or rejection at the next
32 regular general election (or county, city or town election)
33 and each for himself says: (terminate form same as a
34 referendum petition.)

35 B. Each petition sheet shall have printed on the top of each sheet
36 the following:

37 ~~It is unlawful to sign this petition before it has a~~
38 ~~serial number.~~

39 C. Each petition sheet shall have printed in capital letters in not
40 less than twelve point bold-faced type in the upper right-hand corner of
41 the face of the petition sheet and below the statement prescribed in
42 subsection B of this section the following:

43 ~~_____ paid circulator~~ ~~_____ volunteer~~ _____

44 OUT-OF-STATE RESIDENT.

1 D. A circulator of an initiative petition shall state whether the
2 circulator is a paid circulator ~~or~~, volunteer OR OUT-OF-STATE RESIDENT by
3 checking ~~[the appropriate line]~~ [ALL APPLICABLE LINES REGARDING THE STATUS
4 OF THE CIRCULATOR] on the petition form before circulating the petition
5 for signatures.

6 E. Signatures obtained on initiative petitions in violation of
7 subsection D of this section are void and shall not be counted in
8 determining the legal sufficiency of the petition. The presence of
9 signatures that are invalidated under this subsection on a petition does
10 not invalidate other signatures on the petition that were obtained as
11 prescribed by this section.

12 Sec. 3. Section 19-102.01, Arizona Revised Statutes, is amended to
13 read:

14 19-102.01. Initiative petitions; standard of review

15 A. Constitutional and statutory requirements for ~~statewide~~
16 initiative measures must be strictly construed and persons using the
17 initiative process must strictly comply with those constitutional and
18 statutory requirements.

19 B. The secretary of state shall make available a sample initiative
20 petition that strictly complies with the requirements of section 19-121.
21 Any committee that uses the sample initiative petition provided by the
22 secretary of state shall be presumed to have strictly complied with the
23 requirements of section 19-121.

24 Sec. 4. Section 19-118, Arizona Revised Statutes, is amended to
25 read:

26 19-118. Registered circulators; requirements; violation;
27 classification; definition

28 A. For ~~statewide~~ initiative and referendum measures ~~only~~, INCLUDING
29 MEASURES GOVERNED BY SECTIONS 19-141, 19-142 AND 19-143, all circulators
30 who are not residents of this state and all paid circulators must register
31 as circulators with the secretary of state before circulating petitions
32 pursuant to this title. The committee that is circulating the petition
33 shall collect and submit the completed registration applications to the
34 secretary of state. The secretary of state shall establish in the
35 instructions and procedures manual issued pursuant to section 16-452 a
36 procedure for registering circulators, including circulator registration
37 applications, and shall publish on a website maintained by the secretary
38 of state all information regarding circulators that is required pursuant
39 to this section. The secretary of state OR OTHER FILING OFFICER, AS
40 APPLICABLE, shall disqualify all signatures collected by a circulator who
41 fails to register pursuant to this subsection as provided for in section
42 19-121.01, subsection A.

1 B. The circulator registration application required by subsection A
2 of this section shall require the following:

3 1. The circulator's full name, residence address, telephone number
4 and email address.

5 2. The initiative or referendum petition on which the circulator
6 will gather signatures.

7 3. A statement that the circulator consents to the jurisdiction of
8 the courts of this state in resolving any disputes concerning the
9 circulation of petitions by that circulator.

10 4. The address of the committee in this state for which the
11 circulator is gathering signatures and at which the circulator will accept
12 service of process related to disputes concerning circulation of that
13 circulator's petitions. Service of process is effected under this section
14 by delivering a copy of the subpoena to that person individually, by
15 leaving a copy of the subpoena with a person of suitable age or by mailing
16 a copy of the subpoena to the committee by certified mail to the address
17 provided.

18 5. An affidavit from the registered circulator that is signed by
19 the circulator before a notary public and that includes the following
20 declaration:

21 I, (print name), under penalty of a class 1
22 misdemeanor, acknowledge that I am eligible to register as a
23 circulator in the state of Arizona, that all of the
24 information provided is correct to the best of my knowledge
25 and that I have read and understand Arizona election laws
26 applicable to the collection of signatures for ~~a statewide~~ AN
27 initiative or referendum.

28 C. Within five business days after submission and review of a
29 complete and correct circulator registration application that complies
30 with this section, the secretary of state shall register and assign a
31 circulator registration number to the circulator.

32 D. A person may not register as a circulator pursuant to this
33 section if the person:

34 1. Has had a civil or criminal penalty imposed for a violation of
35 title 16 or this title within the immediately preceding five years.

36 2. Has been convicted of treason or a felony and has not been
37 restored to civil rights as described in section 16-101, subsection A,
38 paragraph 5.

39 3. Has been convicted of any criminal offense involving fraud,
40 forgery or identity theft.

41 E. If a registered circulator is properly served with a subpoena to
42 provide evidence in an action regarding circulation of petitions and fails
43 to appear or produce documents as provided for in the subpoena, all
44 signatures collected by that circulator are deemed invalid. The party
45 serving the subpoena may request an order from the court directing the
46 secretary of state to remove any signatures collected by the circulator as
47 provided for in section 19-121.01, subsection A.

1 F. Any person may challenge the lawful registration of circulators
2 in the superior court of the county in which the circulator is registered.
3 A challenge may not be commenced more than ten business days after the
4 date that the secretary of state's office has received, processed and made
5 available all final petition sheets individually numbered. The person
6 challenging signatures may amend that complaint after the secretary of
7 state has removed signatures and signature sheets as prescribed in section
8 19-121.01. An action pursuant to this section shall be advanced on the
9 calendar and decided by the court as soon as possible. Either party may
10 appeal to the supreme court within five calendar days after entry of
11 judgment. The prevailing party in an action to challenge the registration
12 of a circulator under this section is entitled to reasonable attorney
13 fees.

14 G. The removal or disqualification of any one or more circulators
15 does not invalidate the random sample of signatures made pursuant to
16 section 19-121.01, and the secretary of state shall not be required to
17 conduct any additional random sampling of signatures.

18 H. A person who knowingly omits or misrepresents information or
19 provides false information on a circulator registration application or who
20 registers in violation of this section is guilty of a class 1 misdemeanor.

21 I. For the purposes of this title, "paid circulator":

22 1. Means a natural person who receives monetary or other
23 compensation for obtaining signatures on ~~a statewide~~ AN initiative or
24 referendum petition or for circulating ~~statewide~~ initiative or referendum
25 petitions for signatures.

26 2. Does not include a paid employee of any political committee
27 organized pursuant to title 16, chapter 6, unless that employee has or
28 will obtain two hundred or more signatures on an initiative, referendum or
29 recall petition in an election cycle.

30 Sec. 5. Section 19-118.01, Arizona Revised Statutes, is amended to
31 read:

32 19-118.01. Signature collection; prohibited payments;
33 violation; classification

34 A. A person shall not pay or receive money or any other thing of
35 value based on the number of signatures collected on ~~a statewide~~ AN
36 initiative or referendum petition. Signatures that are obtained by a paid
37 circulator who violates this section are void and shall not be counted in
38 determining the legal sufficiency of the petition.

39 B. A violation of this section is a class 1 misdemeanor.

40 Sec. 6. Section 19-141, Arizona Revised Statutes, is amended to
41 read:

42 19-141. Initiative and referendum in counties, cities and
43 towns

44 A. This chapter applies to the legislation of cities, towns and
45 counties, except as specifically provided to the contrary in this
46 article. The duties required of the secretary of state as to state
47 legislation shall be performed in connection with such legislation by the

1 city or town clerk, county officer in charge of elections or person
2 performing the duties ~~as such~~ OF THAT OFFICE. The duties required of the
3 governor shall be performed by the mayor or the chairman of the board of
4 supervisors, the duties required of the attorney general shall be
5 performed by the city, town or county attorney, and the printing and
6 binding of measures and arguments shall be paid for by the city, town or
7 county in like manner as payment is provided for by the state with respect
8 to state legislation. The provisions of section 19-124 with respect to
9 the legislative council analysis do not apply in connection with
10 initiatives and referenda in cities, towns and counties. The printing
11 shall be done in the same manner as other municipal or county printing is
12 done.

13 B. Distribution of pamphlets shall be made to every household
14 containing a registered voter in the city, town or county by the city or
15 town clerk or by the county officer in charge of elections by mail before
16 the earliest date for receipt by registered voters of any requested early
17 ballot for the election at which the measures are to be voted on. If the
18 pamphlet is not mailed before the earliest date for receipt of a requested
19 early ballot, the officer in charge of elections shall provide a notice
20 with the early ballots stating when the pamphlets will be mailed and where
21 and when the pamphlets may be accessed or viewed. Any contract for
22 pamphlet publication or mailing, or both, shall provide for the contractor
23 to pay a penalty for each day of mailing that occurs on or after the
24 earliest date for receipt of requested early ballots. The penalty shall
25 be ~~one cent~~ \$.01 for each household with a registered voter for each day
26 of late mailing, and the monies shall be paid to the office of the officer
27 in charge of elections. Pamphlets shall not be mailed or carried less
28 than ten days before the election at which the measures are to be voted
29 ~~upon~~ ON.

30 C. Arguments supporting or opposing municipal or county initiative
31 and referendum measures shall be filed with the city or town clerk or the
32 county officer in charge of elections not less than ninety days before the
33 election at which they are to be voted ~~upon~~ ON.

34 D. The procedure with respect to municipal and county legislation
35 shall be as nearly as practicable the same as the procedure relating to
36 initiative and referendum provided for the state at large, except the
37 procedure for verifying signatures on initiative or referendum petitions
38 may be established by a city or town by charter or ordinance. ANY
39 MUNICIPAL OR COUNTY INITIATIVE OR REFERENDUM MEASURE THAT PROPOSES A
40 MANDATORY EXPENDITURE, ESTABLISHES A FUND FOR ANY SPECIFIC PURPOSE OR
41 ALLOCATES FUNDING FOR ANY SPECIFIC PURPOSE MUST PROVIDE A DISCLOSURE OF
42 THE EXPENDITURE, FUND OR ALLOCATION AND THE SOURCE OF INCREASED REVENUES
43 SUFFICIENT TO COVER THE ENTIRE IMMEDIATE AND FUTURE COSTS OF THE
44 PROPOSAL. THIS DISCLOSURE SHALL BE PROVIDED IN THE INITIATIVE OR
45 REFERENDUM DESCRIPTION PRESCRIBED BY SECTION 19-101 OR 19-102.

House Amendments to S.B. 1429

1 E. References in this section to duties to be performed by city or
2 town officers apply only with respect to municipal legislation, and
3 references to duties to be performed by county officers apply only with
4 respect to county legislation.

5 F. The duties required of the county recorder with respect to state
6 legislation shall also be performed by the county recorder with respect to
7 municipal or county legislation."

8 Enroll and engross to conform

9 Amend title to conform

ALEXANDER KOLODIN

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C: MR

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